Gmail **Stephen Cooke <stephencooke.c@gmail.com>**

Subpoena List and Update

8 messages

Stephen Cooke <stephencooke.c@gmail.com> Sun, Dec 17, 2023 at 9:09 PM
To: Samantha Miller <samantha@claritylawyers.com.au>
Cc: Prue Garvin <prue@claritylawyers.com.au>

Dear Samantha and Prue,

I hope this message finds you well. Following our discussion last week, I wanted to update you on recent developments and seek your guidance on a few matters.

I have attached a list of contacts and notes related to the subpoena list candidates. Your insights and any further instructions on this matter would be greatly appreciated.

Over the weekend, I received distressing calls from both Christian and Joshua expressing strong desires to spend more time with me. Despite the pleas to Heather to stay with me I overheard during the calls, Heather insists that the decision to allow them to stay with me is contingent on my acceptance of a letter she forwarded to me.

Could you please provide any updates on this situation or advise on the best course of action?

During Sunday's call, Christian asked if I could attend the "Carols By The Beach" event from 5:00 pm to 9:00 pm. I eagerly accepted the invitation and made an effort to avoid interacting with Heather while there – I didn't engage in direct conversation with her.

While seated on dual folding chairs with Christian, he expressed his desire to live with me, stating that he loves me more than he loves Heather and that when he had inquired about my attendance at the "Carols by the Beach" event privately, Heather replied, "I don't want him to attend, but it is a free country."

Unfortunately, the night ended with tears from both boys, expressing their love for me as they said their goodbyes. As they were pulled off, the boys screamed multiple times from a far that they loved me, making quite a scene. Despite all that, I was able to keep my composure.

This morning, Joshua called me from Heather's phone at 7:00 am, urgently requesting that I sign what appears to be a new document sent by Heather's lawyer. The boys are clearly desperate to see me, and I am concerned about the impact this situation may have on them. I did tell the boys that I haven't received them yet but will keep my eye out for them and told them I am really looking forward to being with them again soon.

I am taking every opportunity to spend time with them, but I would appreciate any advice or updates you can provide.

Regarding an update to my bank account being overdrawn by 3.5k with Westpac, I have called Praemium to reverse the payment of 5k. They have acknowledged during the call that this was an error made on their end. They have advised that they will be calling me back today but I currently only have about $60.00 cash available to me.

I've also been wondering if we need to do as the Barrister had suggested. I don't think CHristian is doing well. Joshua may be faring better because he is younger. In the past Christian separation anxiety I believe had more to do with Chsitian losing access to me.

Thank you for your time and assistance.

Kind regards,

Stephen Cooke

Subpoena List - Stephen Cooke.xlsx

13K

Stephen Cooke <stephencooke.c@gmail.com> Sun, Dec 17, 2023 at 9:10 PM
To: cooke.neill@gmail.com

See below and attached.
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Subpoena List - Stephen Cooke.xlsx
13K

Stephen Cooke <stephencooke.c@gmail.com> Sun, Dec 17, 2023 at 9:31 PM
To: Samantha Miller <samantha@claritylawyers.com.au>
Cc: Prue Garvin <prue@claritylawyers.com.au>

Also, I forgot to mention... While at the event yesterday evening, Christians friend (Sebastian) approached us and asked Christian about Oosh . When I asked Christiann about it, he confirmed to me Heather is looking at enrolling Christian into after school care now with Oosh.

So it appears Heather mom Pat will not be helping with the boys as previously thought.

We have ring surveillance installed on our property, Heather works long hours... on the weekend too. Most nights she is home by 5:30pm - 6:00pm sometimes later.

Also, attached are some photos from Carols By The Beach yesterday of me with the boys.

Kind regards,

Stephen Cooke
[Quoted text hidden]

3 attachments



IMG_20231217_190916.jpg
5216K



IMG_20231217_193144.jpg
5676K



IMG_20231217_195321.jpg
6473K

Samantha Miller <samantha@claritylawyers.com.au> Sun, Dec 17, 2023 at 10:11 PM
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Prue Garvin <prue@claritylawyers.com.au>

Dear Stephen,

I'm really sorry to hear that, it sounds traumatic. It's odd that Heather was saying she was awaiting a response from us as it was sent last week. I note that the proposal made required the children to come into your care yesterday afternoon yet this did not occur. Did Heather say anything directly to you? I will urgently chase this up now however I suggest her lawyer may have not forwarded our letter to Heather and there is a breakdown in communication there.

Given the time scales I do not think a review application is justified by the cost and that it will not likely get you on at Court any quicker.

Yours faithfully,

Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

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Clarity LAWYERS | Focus on Family Law



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From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Monday, December 18, 2023 1:09 PM
To: Samantha Miller <samantha@claritylawyers.com.au>
Cc: Prue Garvin <prue@claritylawyers.com.au>
Subject: Subpoena List and Update

Dear Samantha and Prue,

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Stephen Cooke <stephencooke.c@gmail.com> Sun, Dec 17, 2023 at 10:21 PM
To: Samantha Miller <samantha@claritylawyers.com.au>
Cc: Prue Garvin <prue@claritylawyers.com.au>

Hi Samantha,

She has said nothing directly to me. How terrible is this for the boys. They know Angela is visiting as well and our excited to see her.

My sister has been sending gifts to Christian and Joshua on all birthdays and Christmas.

At which point do I involve child services, the thought crossed my mind again on the weekend as this cannot be healthy for the kids especially around Christmas holidays.

Lastly, will also need to subpoena John Hunter. There were a number of weekends this year Heather was absent due to working on the weekend / being on call.

Kind regards,

Stephen Cooke.
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Samantha Miller <samantha@claritylawyers.com.au> Sun, Dec 17, 2023 at 10:36 PM
To: Stephen Cooke <stephencooke.c@gmail.com>

Hi Stephen,

I've considered the list of subpoena you provided. We are only allowed to issue 5 without leave of the Court. Issuing a subpoena to the pharmacist won't return anything, they don't keep any notes of who collected prescriptions or conversations so we won't subpoena them. If relevant we could have them provide an affidavit down the track. I'm note sure the reason behind your suggestion to subpoena John Hunter. Is this to show Heather's work hours? It would be an additional subpoena beyond your five and you can simply give your own evidence that she works weekends, I'm not sure that will be an issue y et.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com> Mon, Dec 18, 2023 at 12:28 AM
To: Samantha Miller <samantha@claritylawyers.com.au>

I don't have a log of Heather's on-call schedule at John Hunter, but it's likely documented in the work roster. I complained about her on call roster a number of times this year, it was particularly unfair. Heather admitted this to be true as well. It's not just the 7 days on call. Heather doesn't respond well post-call. For the next 2 weeks, she's essentially off duty, catching up on rest. She also has to visit patients she admitted to hospitals during that time like Lake Macquarie, Lingard Private Hospital, and Belmont until they're out or transferred.

Regarding the Pharmacist, why not just a statutory deceleration then? Heather knows the Newcastle General Practice Doctors and also the two establishments benefit from relations. I'm just worried about that relationship possibly hindering truths and feel the Pharmacist can assist in supporting my claim.

Regarding Praemium, I have been advised, they need to conduct an internal investigation to determine if my letter dated 08-12-23 was clear about stopping regular contributions (letter attached.) Unfortunately, they can't specify how long this process would take.

They instead suggested sending another letter to specify the removal of regular contributions specifically and also request a withdrawal of $5,000 to my bank account.

I advised Praemium my preference would be to instead simply have them undo they're mistake in an effort to avoid any resemblance to Heather's actions with respect to our joint accounts. However, Praemium maintains that this is the quickest way to stop interest accumulating in my overdrawn Westpac account and reassured me that the optics are a bit different as this is an asset is solely under my name/. Please find attached Praemium - Stephen Cooke 18-12-23.pdf.

Given the difficulties in negotiating with Heather, I have suggested I withdraw $6,000 as I have been told there are no consequences to doing so. I plan to send this letter to Praemium tomorrow.

Stephen Cooke

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2 attachments

Letter dated 12-08-23 re SMA00418788.pdf
787K

Praemium - Stephen Cooke 18-12-23.pdf
242K

Stephen Cooke <stephencooke.c@gmail.com> Mon, Dec 18, 2023 at 12:28 AM
To: cooke.neill@gmail.com

---------- Forwarded message ---------
From: **Stephen Cooke** <stephencooke.c@gmail.com>
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2 attachments

Letter dated 12-08-23 re SMA00418788.pdf
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